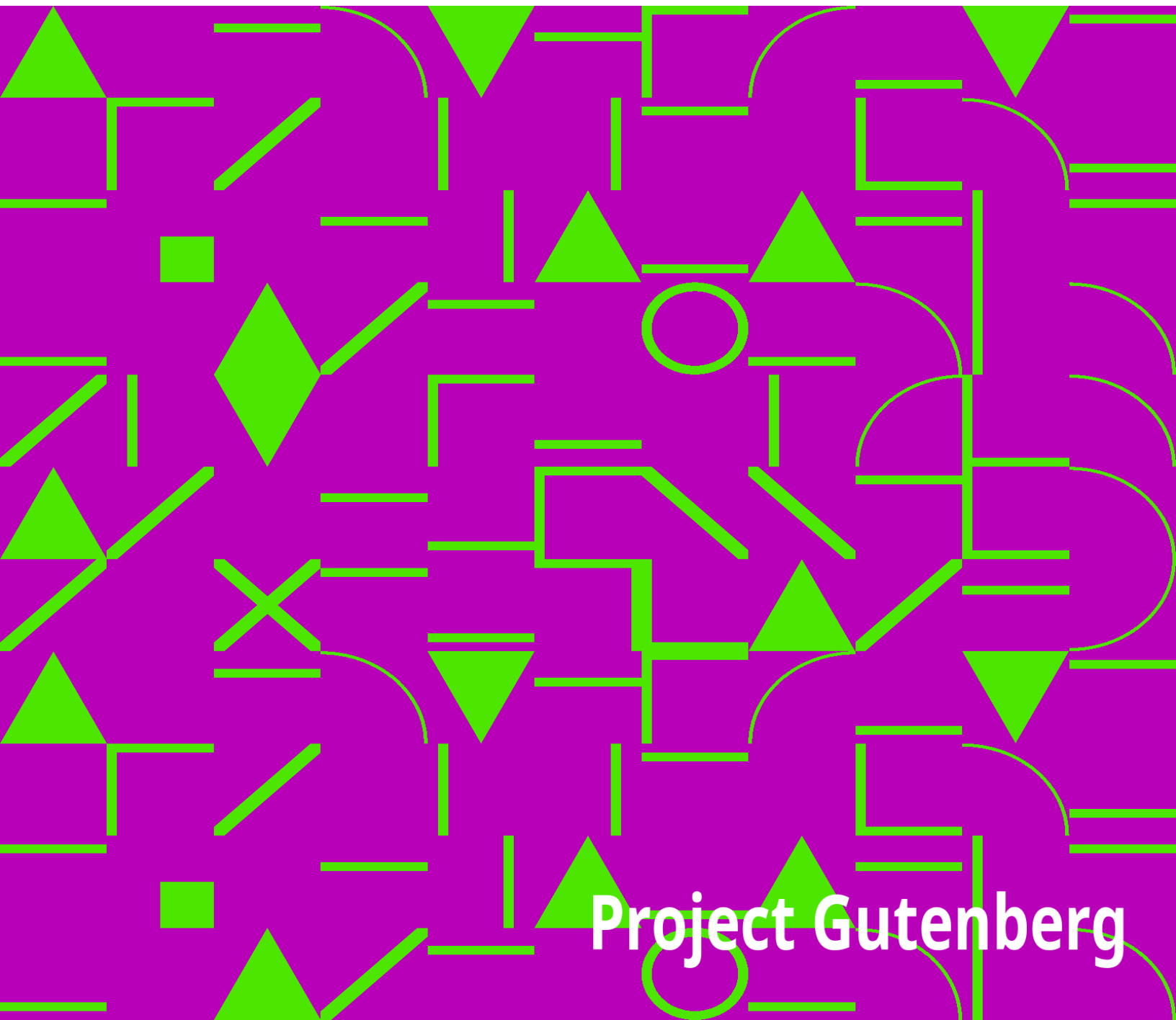


A Discourse on the Life, Character and Writings of Gulian Crommelin Verplanck

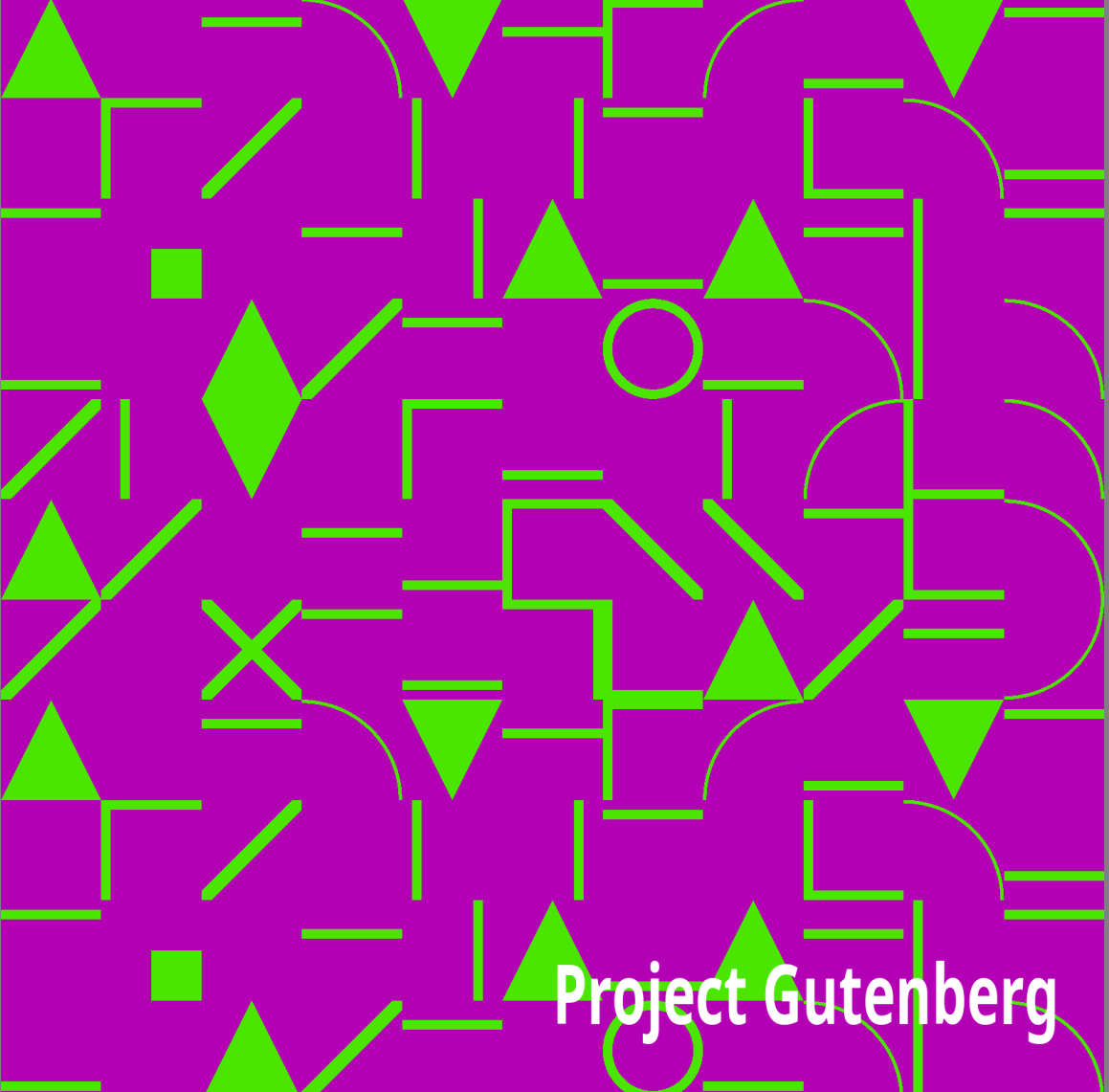
William Cullen Bryant



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William Cullen Bryant



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CHARACTER AND WRITINGS OF GULIAN CROMMELIN VERPLANCK**

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CROMMELIN VERPLANCK ***

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**A DISCOURSE ON THE LIFE,
CHARACTER AND WRITINGS OF GULIAN
CROMMELIN VERPLANCK**

**DELIVERED BEFORE THE NEW-YORK HISTORICAL
SOCIETY, MAY 17TH, 1870**

BY WILLIAM CULLEN BRYANT.

**NEW YORK:
PRINTED FOR THE SOCIETY
MDCCCLXX**

At a special meeting of the New York Historical Society, held at Steinway Hall, on Tuesday evening, May 17, 1870, WILLIAM CULLEN BRYANT delivered a discourse on the *Life, Character and Writings of Gulian C. Verplanck*.

On its conclusion HUGH MAXWELL submitted the following resolution, which was adopted unanimously:

Resolved, That the thanks of this Society be presented to Mr. BRYANT for his eloquent and instructive discourse, delivered this evening, and that he be requested to furnish a copy for publication.

Extract from the Minutes,

Andrew Warner,
Recording Secretary.

OFFICERS OF THE SOCIETY, ELECTED JANUARY, 1870.

President, Thomas De Witt, D.D.

First Vice-President, Gulian C. Verplanck, LL.D.

Second Vice-President, John A. Dix, LL.D.

Foreign Corresponding Secretary, John Romeyn Brodhead, LL.D.

Domestic Corresponding Secretary, William J. Hoppin.

Recording Secretary, Andrew Warner.

Treasurer, Benjamin H. Field.

Librarian, George H. Moore, LL.D.

The life of him in honor of whose memory we are assembled, was prolonged to so late a period and to the last was so full of usefulness, that it almost seemed a permanent part of the organization and the active movement of society here. His departure has left a sad vacuity in the framework which he helped to uphold and adorn. It is as if one of the columns which support a massive building had been suddenly taken away; the sight of the space which it once occupied troubles us, and the mind wearies itself in the unavailing wish to restore it to its place.

In what I am about to say, I shall put together some notices of the character, the writings, and the services of this eminent man, but the portraiture which I shall draw will be but a miniature. To do it full justice a larger canvas would be required than the one I propose to take. He acted in so many important capacities; he was connected in so many ways with our literature, our legislation, our jurisprudence, our public education, and public charities, that it would require a volume adequately to set forth the obligations we owe to the exertion of his fine faculties for the general good.

Gulian Crommelin Verplanck was born in Wall street, in the city of New York, on the 6th of August, 1786. The house in which he was born was a

large yellow mansion, standing on the spot on which the Assay Office has since been built. A little beyond this street, a few rods only, lay the island of New York in all its original beauty, so that it was but a step from Wall street to the country. His father, Daniel Crommelin Verplanck, was a respectable citizen of the old stock of colonists from Holland, who for several terms was a member of Congress, and whom I remember as a short, stout old gentleman, commonly called Judge Verplanck, from having been in the latter years of his life a Judge of the County Court of Dutchess. Here he resided in the latter years of his life on the patrimonial estate, where the son, ever since I knew him, was always in the habit of passing a part of the summer. It had been in the family of the Verplancks ever since their ancestor Gulian Verplanck with Francis Rombout, in 1683, purchased it, with other lands, of the Wappinger Indians for a certain amount of money and merchandize, specified in a deed signed by the Sachem Sakoraghuck and other chiefs, the spelling of whose names seems to defy pronunciation. The two purchasers afterwards divided this domain, and to the Verplancks was assigned a tract which they have ever since held.

This fine old estate has a long western border on the Hudson, and extends easterly for four or five miles to the village of Fishkill. About half a mile from the great river stands the family mansion, among its ancient groves, a large stone building of one story when I saw it; with a sharp roof and dormer windows, beside its old fashioned and well stocked garden. A winding path leads down to the river's edge, through an ancient forest which has stood there ever since Hendrick Hudson navigated the river bearing his name, and centuries before. This mansion was the country retreat of Mr. Verplanck ever since I knew him, and here it was that his grandfather on the paternal side, Samuel Verplanck, passed much of his time during our revolutionary war, in which, although he took no share in political measures, his inclinations were on the side of the mother country. This Samuel Verplanck, by a custom which seems not to have become obsolete in his time, was betrothed when but seven years old to his cousin Judith Crommelin, the daughter of a wealthy banker of the Huguenot stock in Amsterdam. When the young gentleman was of the proper age he was sent to make the tour of Europe, and bring home his bride. He was married in the banker's great stone house, standing beside a fair Dutch garden, with a wide marble entrance hall, the counting room on one side of it, and the

drawing room, bright with gilding, on the other. When the grandson, in after years, visited Amsterdam, the mansion which had often been described to him by his grandmother, had to him quite a familiar aspect.

The lady from Amsterdam was particularly accomplished, and versed not only in several modern languages, but in Greek and Latin, speaking fluently the Latin, of which the Colloquies of her great countryman, Erasmus, furnish so rich a store of phrases for ordinary dialogue. Her conversation is said to have been uncommonly brilliant and her society much sought. During the revolutionary war her house was open to the British officers, General Howe, and others, accomplished men, of whom she had many anecdotes to relate to her grandson, when he came under her care. For the greater part of this time her husband remained at the country seat in Fishkill, quietly occupied with his books and the care of his estate. Meantime, she wrote anxious letters to her father, in Amsterdam, which were answered in neat French. The banker consoled his daughter by saying that "Mr. Samuel Verplanck was a man so universally known and honored, both for his integrity and scholarly attainments, that in the end all would be well." This proved true; the extensive estate at Fishkill was never confiscated, and its owner was left unmolested.

On the mother's side, our friend had an ancestry of quite different political views. His grandfather, William Samuel Johnson, of Stratford, in Connecticut, was one of the revolutionary fathers. Before the revolution, he was the agent of Connecticut in England; when it broke out he took a zealous part in the cause of the revolted colonies; he was a delegate to Congress from his State when Congress sat in New York, and he aided in framing the Constitution of the United States. Afterwards, he was President of Columbia College from the year 1787 to the year 1800, when, resigning the post, he returned to Stratford, where he died in 1819, at the age of ninety-two. His father, the great-grandfather of the subject of this memoir, was Dr. Samuel Johnson, of Stratford, one of the finest American scholars of his day, and the first President of Columbia College, which however, he left after nine years, to return and pass a serene old age at Stratford. He had been a Congregational minister in Connecticut, but by reading the works of Barrow and other eminent divines of the Anglican Church, became a convert to that church, went to England, and taking orders returned to

introduce its ritual into Connecticut. He was the friend of Bishop Berkeley, whose arm-chair was preserved as an heir-loom in his family. When in England, he saw Pope, who gave him cuttings from his Twickenham willow. These he brought from the banks of the Thames, and planted on the wilder borders of his own beautiful river the Housatonic, which at Stratford enters the Sound. They were, probably, the progenitors of all the weeping willows which are seen in this part of the country, where they rapidly grow to a size which I have never seen them attain in any other part of the world.

The younger of these Dr. Johnsons--for they both received the degree of Doctor of Divinity from the University of Oxford--had a daughter Elizabeth, who married Daniel Crommelin Verplanck, the son of Samuel Verplanck, and the only fruit of their marriage was the subject of this memoir. The fair-haired young mother was a frequent visitor with her child to Stratford, where, under the willow trees from Twickenham, as appears from some of her letters, he learned to walk. She died when he was but three years old, leaving the boy to the care of his grandmother, by whom he was indulgently yet carefully reared.

The grandmother is spoken of as a lively little lady, often seen walking up Wall Street, dressed in pink satin and in dainty high heeled shoes, with a quaint jewelled watch swinging from her waist. Wall Street was then the fashionable quarter; the city, still in its embryo state extending but a little way above it; it was full of dwelling houses, with here and there a church, which has long since disappeared. Over that region of the metropolis where Mammon is worshipped in six days out of seven, there now broods on Sunday a sepulchral silence, but then the walks were thronged with churchgoers. The boy was his grandmother's constant companion. He was trained by her to love books and study, to which, however, he seems to have had a natural and inherited inclination. It is said that at a very tender age she taught him to declaim passages from Latin authors, standing on a table, and rewarded him with hot pound-cake. Another story is, that she used to put sugar-plums near his bedside, to be at hand in case he should take a fancy to them in the night. But, as he was not spoiled by indulgence, it is but fair to conclude that her gentle method of educating him was tempered by firmness on proper occasions--a quality somewhat rare in grandmothers. A letter from one of her descendants playfully says:

"It is a picture to think of her, seated at a marvellous Dutch bureau, now in possession of her great-grand-daughters, which is filled with a complexity of small and mysterious drawers, talking to the child, while her servant built the powdered tower on her head, or hung the diamond rings in her ears. Very likely, at such times, the child was thrusting his little fingers into the rouge pot, or making havoc with the powder, and perhaps she knew no better way to bring him to order than to tell him of many of a fright of her own in the war, or she may have gone further back in history, and told the boy how her and his Huguenot ancestors fled from France when the bad King Louis forbade every form of worship but his own."

Dr. Johnson, the grandfather of young Verplanck, on the mother's side, came from Stratford to be President of Columbia College, the year after his grandson was born. To him, in an equal degree with his grandmother, we must give the credit of bringing forward the precocious boy in his early studies. I have diligently inquired what school he attended and who were his teachers, but can hear of no other. His father had married again, and to the lively Huguenot lady was left the almost entire charge of the boy. He was a born scholar; he took to books as other boys take to marbles; and the lessons which he received in the household sufficed to prepare him for entering college when yet a mere child, at eleven years of age. He took his first degree four years afterwards, in 1801, one year after his maternal grandfather had returned to Stratford. To that place he very frequently resorted in his youth, and there, in the well-stored and well-arranged library he pursued the studies he loved. The tradition is that he conned his Greek lessons lying flat on the floor with his thumb in his mouth, and the fingers of the other hand employed in twisting a lock of the brown, hair on his forehead. He took no pleasure in fishing or in hunting; I doubt whether he ever let off a fowling-piece or drew a trout from the brook in his life. He was fond of younger children, and would recreate himself in play with his little relatives, but was no visitor to other families. His contemporaries, Washington Irving, James K. Paulding, and Gouverneur Kemble, had their amusements and frolics, in which he took no part. According to Mr. Kemble, the elder men of the time held up to the youths the example of young Verplanck, so studious and accomplished, and so ready with every kind of knowledge, and withal of such faultless habits, as a model for their imitation.

I have said that his relatives on the mother's side were of a different political school from his high tory grandmother. From them he would hear of the inalienable rights of the people, and the duty, under certain circumstances, of revolution; from her he would hear of the obligation of loyalty and obedience. The Johnsons would speak of the patriotism, the wisdom, and the services of Franklin; the grandmother of the virtues and accomplishments of Cornwallis. The boy, of course, had to choose between these different sides, and he chose the side of his country and of the people.

I think that I perceive in these circumstances how it was that the mind of Verplanck was educated to that independence of judgment, and that self-reliance, which in after life so eminently distinguished it. He never adopted an opinion for the reason that it had been adopted by another. On some points--on more, I think, than is usual with most men--he was content not to decide, but when he formed an opinion it was his own. He had no hesitation in differing from others if he saw reason; indeed, he sometimes showed that he rather liked to differ, or chose at least, by questioning their opinions, to intimate that they were prematurely formed. Another result of the peculiar political education which I have described, was the fairness with which he judged of the characters and motives of men who were not of his party. I saw much, very much of him while he was a member of Congress, when political animosities were at their fiercest, and I must say that I never knew a party man who had less party rancor, or who was more ready to acknowledge in his political opponents the good qualities which they really possessed.

After taking his degree he read law in the office of Josiah Ogden Hoffman, an eminent member of the New York bar, much esteemed in social life, whose house was the resort of the best company in New York. His first public address, a Fourth of July oration, was delivered when he was eighteen years of age. It was printed, but no copy of it is now to be found. In due season he was admitted to the bar, and opened an office for the practice of law in New York. A letter from Dr. Moore, formerly President of Columbia College, relates that Verplanck and himself took an office together on the east side of Pearl street, opposite to Hanover square. "Little business as I had then," proceeds the Doctor, "he seemed to have still less. Indeed I am not aware that he had, or cared to have, any legal business

whatever. He spent much of his time out of the office and was not very studious when within, but it was evident that he read or had read elsewhere to good purpose, for though I read more Greek than law and thought myself studious, I had occasion to discover more than once that he was a better Grecian than I, and could enlighten my ignorance." From other sources I learn that in his legal studies he delighted in the reports of law cases in Norman French, that he was fond of old French literature, and read Rabelais in the perplexing French of the original. It is mentioned in some accounts of his life that he was elected in 1811 to the New York House of Assembly by a party called the malcontents, but I have not had the means of verifying this account, nor am I able to discover what were the objects for which the party called malcontents was formed. In this year an incident occurred of more importance to him than his election to the Assembly.

On the 8th of August, 1811, the Annual Commencement of Columbia College was held in Trinity Church. Among those who were to receive the degree of Bachelor of Arts was a young man named Stevenson, who had composed an oration to be delivered on the platform. It contained some passages of a political nature, insisting on the duty of a representative to obey the will of his constituents. Political parties were at that time much exasperated against each other, and Dr. Wilson of the College, to whom the oration was submitted, acting it was thought at the suggestion of Dr. John Mason, the eloquent divine, who was then Provost of the College, struck out the passages in question and directed that they should be omitted in the delivery. Stevenson spoke them notwithstanding, and was then privately informed by one of the professors that his degree would be denied him. Yet, when the diplomas were delivered, he mounted the platform with the other graduates and demanded the degree of Dr. Mason. It was refused because of his disobedience. Mr. Hugh Maxwell, afterwards eminent as an advocate, sprang upon the platform and appealed to the audience against this denial of what he claimed to be the right of Stevenson. Great confusion followed, shouts, applauses and hisses, in the midst of which Verplanck appeared on the platform saying: "The reasons are not satisfactory; Mr. Maxwell must be supported," and then he moved "that the thanks of the audience be given to Mr. Maxwell for his spirited defence of an injured man." It was some time before the tumult could be allayed, the audience taking part with the disturbers; but the result was that Maxwell, Verplanck, and several others

were prosecuted for riot in the Mayor's Court. DeWitt Clinton was then Mayor of New York. In his charge to the jury he inveighed with great severity against the accused, particularly Verplanck, of whose conduct he spoke as a piece of matchless impudence, and declared the disturbance to be one of the grossest and most shameless outrages he had ever known. They were found guilty; Maxwell, Verplanck, and Stevenson were fined two hundred dollars each, and several others less. An appeal was entered by the accused but afterwards withdrawn. I have heard one of our judges express a doubt whether this disturbance could properly be considered as a riot, but they did not choose to avail themselves of the doubt, if there was any, and submitted.

There is this extenuation of the rashness of these young men, that Dr. Mason, to whom was attributed the attempt to suppress certain passages in Stevenson's oration, was himself in the habit of giving free expression to his political sentiments in the pulpit. He belonged to the federal party, Stevenson to the party then called republican.

I have said the accused submitted; but the phrase is scarcely accurate. Verplanck took his own way of obtaining redress, and annoyed Clinton with satirical attacks for several years afterward. Some of these appeared in a newspaper called the *Corrector*, but those which attracted the most attention, were the pamphlets styled Letters of Abimelech Coody, Ladies' Shoemaker, the first of which was published in 1811, addressed to Dr. Samuel Latham Mitchell.

The war went on until Clinton or some friend was provoked to answer in a pamphlet entitled An Account of Abimelech Coody and other celebrated Worthies of New York, in a Letter from a Traveller. The writer saterizes not only Verplanck, but James K. Paulding and Washington Irving, of whose History of New York he speaks disparagingly. In what he says of Verplanck he allows himself to refer to his figure and features as subjects of ridicule. This war I think was closed by the publication of "The Bucktail Bards," as the little volume is called, which contains The State Triumvirate, a Political Tale, and the Epistles of Brevet Major Pindar Puff. These I have heard spoken of as the joint productions of Verplanck and Rudolph Bunner, a scholar and a man of wit. The State Triumvirate is in octo-syllabic verse,

and in the manner of Swift, but the allusions are obscure, and it is a task to read it. The notes, in which the hand of Verplanck is very apparent, are intelligible enough and are clever, caustic and learned. The Epistles, which are in heroic verse, have striking passages, and the notes are of a like incisive character. De Witt Clinton, then Governor of the State, valued himself on his devotion to science and literature, but he was sometimes obliged, in his messages and public discourses, to refer to compends which are in every body's hands, and his antagonists made this the subject of unsparing ridicule.

In the family of Josiah Ogden Hoffman, lived Mary Eliza Fenno, the sister of his wife, and daughter of John Ward Fenno, originally of Boston, and afterwards proprietor of a newspaper published in Philadelphia, entitled the *Gazette of the United States*. Between this young lady and Verplanck there grew up an attachment, and in 1811 they were married. I have seen an exquisite miniature of her by Malbone, taken in her early girlhood when about fifteen years old--beautiful as an angel, with light chestnut hair and a soft blue eye, in the look of which is a touch of sadness, as if caused by some dim presentiment of her early death. I remember hearing Miss Sedgwick say that she should always think the better of Verplanck for having been the husband of Eliza Fenno. Several of her letters written to him before their marriage are preserved, which, amidst the sprightliness natural to her age, show a more than usual thoughtfulness. She rallies him on being adopted by the mob, and making harangues at ward meetings. She playfully chides him for wandering from the Apostolic Church to hear popular preachers and clerks that sing well; which she regards as crimes against the memory of his ancestors--an allusion to that part of the family pedigree which traced his descent in some way from the royal line of the Stuarts. She rallies him on his passion for old books, remarking that some interesting works had just appeared which must be kept from him till he reaches the age of three score, when they will be fit for his perusal. She writes to him from Boston, that he is accounted there an amazingly plain spoken man--he had called the Boston people heretics. She writes to him in Stratford, imagining him in Bishop Berkeley's arm-chair, surrounded by family pictures and huge folios. These letters were carefully preserved by her husband till his death, along with various memorials of her whom he had lost; locks of her sunny brown hair, the diamond ring which he had

placed on her finger when they were engaged to each other, wrapt in tresses of the same bright hair, and miniatures of her, which the family never heard of till he died; all variously disposed among the papers in the drawers of his desk; so that whenever he opened it, he might be reminded of her, and her memory might become a part of his daily life. With these were preserved some letters of his own, written to her about the same time, and of a sportive character. In one of these he laments the passing away of the good old customs, and simple ways of living in the country, supplanted by the usages of town life. Everybody was then reading Coelebs in Search of a Wife, and Verplanck who had just been looking over some of the writings of Wilberforce, sees in it resemblances to his style, which led him to set down Wilberforce as the author.

He lived with his young wife five years, and she bore him two sons, one of whom died at the age of thirty unmarried, and the other has become the father of a numerous family. Her health failing he took her to Europe, in the hope that it might be restored by a change of air and scene, but after languishing a while she died at Paris, in the year 1817. She sleeps in the cemetery of Pere La Chaise, among monuments inscribed with words strange to her childhood, while he, after surviving her for sixty-three years, yet never forgetting her, is laid in the ancestral burying ground at Fishkill, and the Atlantic ocean rolls between their graves.

He remained in Europe a little while after this event, and having looked at what the continent had to show him, went over to England. In his letters to his friends at home he spoke pathetically of the loss of her who was the blessing of his life, of the delight with which, had she lived, she would have looked at so many things in the old world now attracting his attention; and of the misfortune of his children to be deprived of her care and guidance. In one of his letters he speaks enthusiastically of the painter, Allston, with whose genius he was deeply impressed as he looked on the grand picture of Daniel interpreting the Dream of Belshazzar, then begun but never to be finished. In the same letter he relates this anecdote:

"You may expect another explosion of mad poetry from Lord Byron. Lord Holland, who returned from Geneva, a few days ago, told Mr. Gallatin that he was the bearer of a considerable cargo of verses from his lordship to

Murray the publisher, the subject not known. That you may have a higher relish for the new poem, I give you a little anecdote which is told in London. Some time ago Lord Byron's books were sold at auction, where a gentleman purchased a splendid edition of Shakespeare. When it was sent home a volume was missing. After several fruitless inquiries of the auctioneer the purchaser went to Byron. 'What play was in the volume?' asked he. 'I think Othello,' 'Ah! I remember. I was reading that when Lady Byron did something to vex me. I threw the book at her head and she carried it out of the room. Inquire of some of her people and you will get your book.'"

While abroad, Verplanck fell in with Dr. Mason, who had refused Stephenson his degree. The two travellers took kindly to each other, and the unpleasant affair of the college disturbance was forgotten.

In 1818, after his return from Europe, he delivered before this Society the noble Anniversary Discourse in which he commemorates the virtues and labors of some of those illustrious men who, to use his words, "have most largely contributed to raise or support our national institutions, and to form or elevate our national character." Las Casas, Roger Williams, William Penn, General Oglethorpe, Professor Luzac, and Berkeley are among the worthies whom he celebrates. It has always seemed to me that this is one of the happiest examples in our language of the class of compositions to which it belongs, both as regards the general scope and the execution, and it is read with as much interest now as when it was first written.

Mr. Verplanck was elected in 1820 a member of the New York House of Assembly, but I do not learn that he particularly distinguished himself while in that body. In the year following he was appointed, in the General Theological Seminary of the Episcopal Church, Professor of the Evidences of Revealed Religion and Moral Science in its relations to Theology. For four years he performed the duties of this Professorship, with what ability is shown by his Treatise on the Evidences of Christianity, the fruit of his studies during this interval. It is principally a clear and impressive view of that class of proofs of the Christian religion which have a direct relation to the intellectual and moral wants of mankind. For he was a devout believer in the Christian gospel, and cherished religious convictions for the sake of

their influence on the character and the life. This work was published in 1824, about the time that he resigned his Professorship.

It was in 1824, that, on a visit to New York, I first became acquainted with Verplanck. On the appearance of a small volume of poems of mine, containing one or two which have been the most favorably received, he wrote, in 1822, some account of them for the New York American, a daily paper which not long before had been established by his cousin, Johnson Verplanck, in conjunction with the late Dr. Charles King. He spoke of them at considerable length and in the kindest manner. As I was then an unknown literary adventurer, I could not but be grateful to the hand that was so cordially held out to welcome me, and when I came to live in New York, in 1825, an intimacy began in which I suspect the advantage was all on my side.

It was in 1825 that he published his Essay on the Doctrine of Contracts, in which he maintained that the transaction between the buyer and seller of a commodity should be one of perfect frankness and an entire absence of concealment; that the seller should be held to disclose everything within his knowledge which would affect the price of what he offered for sale, and that the maxim which is compressed into the two Latin words, *caveat emptor*--the maxim that the buyer takes the risk of a bad bargain--is not only a selfish but a knavish and immoral rule of conduct, and should not be recognized by the tribunals. The question is ably argued on the grounds of an elevated morality--but I have heard jurists object to the doctrine of this essay, that if it were to prevail it would greatly multiply the number of lawsuits.

In 1825, Mr Verplanck was elected one of the three Representatives in Congress, to which this city was then entitled. He immediately distinguished himself as a working member. This appellation is given in Congress to members who labor faithfully in Committees, consider petitions and report upon them, investigate claims, inquire into matters referred to their judgment, frame bills and present them through their Chairman. Besides these, there are the talking members who take part in every debate, often without knowing anything of the question, save what they learn while the debate is proceeding, and the idle members, who do

nothing but vote--generally I believe, without knowing anything of the question whatever; but to neither of these classes did Verplanck belong. He was a diligent, useful, and valued member of the Committee of Ways and Means, and at an important period of our political history was its Chairman.

Then arose the great controversy concerning the right of a State to refuse obedience at pleasure to any law of Congress, a right contended for under the name of nullification by some of the most eminent men of the South, whose ability, political influence, and power of putting a plausible face on their heresy, gave their cause at first an appearance of great strength, and seemed to threaten the very existence of the Union. With their denial of the binding force of any law of Congress which a State might think proper to set aside, these men combined another argument. They denied the power of Congress, under the Constitution, to levy duties on imported merchandize, for the purpose of favoring the home manufacturer, and maintained that it could only lay duties for the sake of raising a revenue. Mr. Verplanck favored neither this view nor their theory of nullification. He held that the power to lay duties being given to Congress, without reservation by the Constitution, the end or motive of laying them was left to the discretion of the Legislature. He showed also that the power to regulate commerce given to that body in the Constitution, was, from an early period in our history, held to imply a right, by laying duties, to favor particular traffics, products or fabrics.

This view of the subject was presented with great skill and force in a pamphlet entitled "A Letter to Colonel William Drayton, of South Carolina," published in 1831. Mr. Verplanck was through life a friend to the freedom of exchange, but he would not use in its favor any argument which did not seem to him just. His pamphlet was so ably reasoned that William Leggett said to him, in my presence, "Mr. Verplanck, you have convinced me; I was, till now, of a different opinion from yours, but you have settled the question against me. I now see that whatever may be the injustice of protective duties, Congress has the constitutional right to impose them."

It was while this controversy was going on that President Jackson issued his proclamation warning those who resisted the revenue laws that their resistance was regarded as rebellion, and would be quelled at the bayonet's

point. Mr. Calhoun and his friends were not prepared for this: indeed, I do not think that in any of his plans for the separate action of the slave States, he contemplated a resort to arms on either side. They looked about them to find some plausible pretext for submission, and this the country was not unwilling to give. It was generally admitted that the duties on imported goods ought to be reduced, and Mr. McLane, Secretary of the Treasury, and Mr. Verplanck, Chairman of the Committee of Ways and Means, each drew up a plan for lessening the burdens of the tariff.

Mr. McLane had just returned from a successful mission to Great Britain, and had the advantage of considerable personal popularity. He was a moderate protectionist, and with great pains drew up a scheme of duties which kept the protection of home manufactures in view. Some branches of industry, he thought, were so far advanced that they would bear a small reduction of the duty; others a still larger; others were yet so weak that they could not prosper unless the whole existing duty was retained. The scheme was laid before Congress, but met with little attention from any quarter; the southern politicians regarded it with scorn, as made up of mere cheese-parings. Mr. Verplanck's plan of a tariff was more liberal. He was not a protectionist, and his scheme contemplated a large reduction of duties--as large as it was thought could possibly be adopted by Congress--yet so framed as to cause as little inconvenience as might be to the manufacturers. It was thought that Mr. Calhoun and his friends would readily accept it as affording them a not ignoble retreat from their dangerous position.

While these projects were before Congress, Mr. Littel, a gentleman of the free-trade school, and now editor of the "Living Age," drew up a scheme of revenue reform more thorough than either of the others. It proposed to reduce the duties annually until, at the end of ten years the principle of protection, which was what the southern politicians complained of, should disappear from the tariff, and a system of duties take its place which should in no case exceed the rate of twenty per cent, on the value of the commodity imported. The draft of this scheme was shown to Mr. Clay: he saw at once that it would satisfy the southern politicians; he adopted it, brought it before Congress, urged its enactment in several earnest speeches, and by the help of his great influence over his party it was rapidly carried through both houses, under the name of the Compromise Tariff, to the astonishment of

the friends of free-trade, the mill owners, the Secretary of the Treasury, the Committee of Ways and Means, and, I think, the country at large. I thought it hard measure for Mr. Verplanck that the credit of this reform should be taken out of his hands by one who had always been the great advocate of protective duties; but this was one of the fortunate strokes of policy which Mr. Clay, when in the vigor of his faculties, had the skill to make. He afterwards defended the measure as inflicting no injury upon the manufacturers, and it never appeared to lessen the good will which his party bore him.

About this time I was witness to a circumstance which showed the sagacity of Mr. Verplanck in estimating the consequences of political measures. Mr. Van Buren had been sent by President Jackson as our Minister to the British Court while Congress was not in session, and the nomination yet awaited confirmation by the Senate. It led to a long and spirited debate, in which Mr. Marcy uttered the memorable maxim: "To the victor belong the spoils of the enemy," which was so often quoted against him. I was in Washington, dining with Mr. Verplanck, when the vote on this nomination was taken. As we were at the table, two of the Senators, Dickinson, of New Jersey, and Tazewell, of Virginia, entered. Verplanck, turning to them, asked eagerly: "How has it gone?" Dickinson, extending his left arm, with the fingers closed, swept the other hand over it, striking the fingers open, to signify that the nomination was rejected. "There," said Verplanck, "that makes Van Buren President of the United States." Verplanck was by no means a partizan of Van Buren, but he saw what the effect of that vote would be, and his prediction was, in due time, verified.

While in Congress, Mr. Verplanck procured the enactment of a law for the further security of literary property. To use his own words, it "gave additional security to the property of authors and artists in their works, and more than doubled the term of legal protection to them, besides simplifying the law in various respects." It was passed in 1831, though Mr. Verplanck had begun to urge the measure three years before, when he brought in a bill for the purpose, but party strife was then at its height, and little else than the approaching elections were thought of by the members of Congress. When party heat had cooled a little, he gained their attention, and his bill became a law. If we had now in Congress a member so much interested for the rights

of authors and artists, and at the same time so learned, so honored, and so persevering, we might hope that the inhospitable usage which makes the property of the American author in Great Britain and of the British author in the United States the lawful prize of whosoever chooses to appropriate it to himself, would be abolished.

A dinner was given to Verplanck on his return from Washington, in the name of several literary gentlemen of New York, but the expense was, in fact, defrayed by a generous and liberal-minded bookseller, Elam Bliss, who held authors in high veneration and only needed a more discriminating perception of literary merit to make him, in their eyes at least, a perfect bookseller. On this occasion Mr. Verplanck spoke well and modestly of the part he had taken in procuring the passage of the new law; mentioned with especial honor the "first and ablest champion" who had then "appeared in this cause," the Hon. Willard Phillips, who had discussed the question in the "North American Review;" referred to the opinions of various eminent publicists, and pointed out that our own Constitution had recognized the right of literary property while it left to Congress the duty of securing it. He closed with an animated view of what American literature ought to be and might be under circumstances favorable to its wholesome and vigorous growth. We listened with delight and were proud of our Representative.

During Mr. Verplanck's fourth and last term in Congress he became separated from his associates of the Democratic party by a difference in regard to the Bank of the United States. General Jackson had laid rough hands on this institution and removed to the State banks the public money which had till then been entrusted to its keeping. Many of our best men had then a high opinion of the utility of the bank, and thought much better of its management than, as afterwards appeared, it deserved. The Whig party declared itself in favor of the bank. Mr. Calhoun and the Southern politicians of his immediate school joined them on this question, and Mr. Verplanck, who regarded the bank with a friendly eye, found himself on the same side, which proved to be the minority. The time arrived for another election of members of Congress from this City. The Democratic party desired to re-elect Mr. Verplanck, if some assurance could be obtained from him that he would not oppose the policy of the Administration in regard to the bank. That party understood very well his merits and his usefulness, and

made a strong effort to retain him, but he would give no assurance, even to pursue a neutral course, on the bank question, and accordingly his name was reluctantly dropped from their list of nominations. A long separation ensued between him and those who up to that time had been his political associates.

In 1834, the Whig party, looking for a strong candidate for the Mayoralty of the City, offered the nomination to Verplanck, who accepted it. On the other side, the Democrats brought forward Cornelius W. Lawrence, a man of popular manners and unquestioned integrity. Those were happy days when, in voting for a Mayor, the citizen could be certain that he would not vote amiss, and that whoever succeeded in the election, the City was sure of an honest man for its chief officer. One would have thought that this consideration might make the election a quiet one, but it was not so; the struggle was for party supremacy, and it was violent on both sides. At that time the polls were kept open for three days, and each day the excitement increased; disorders took place; some heads were broken, and at last it appeared that Lawrence was elected Mayor by a majority of about two hundred votes.

While in Congress, Verplanck had leisure, during the interval between one session and another, for literary occupations. He wrote about one-third of an annual collection of miscellanies entitled, the "Talisman," which was published by Dr. Bliss in the year 1827 and the two following years. To these volumes he contributed the "Peregrinations of Petrus Mudd," a humorous and lively sketch, founded on the travels of a New Yorker of the genuine old stock, who when he returned from wandering over all Europe and part of Asia, set himself down to study geography in order to know where he had been. Of the graver articles he wrote "De Gourges," a chapter from the history of the Huguenot colonists of this country, "Gelyna, a Tale of Albany and Ticonderoga," and several others. In conjunction with Robert C. Sands, a writer of a peculiar vein of quaint humor, he contributed two papers to the collection, entitled "Scenes in Washington," of a humorous and satirical character. He disliked the manual labor of writing and was fond of dictating while another held the pen. I was the third contributor to the "Talisman," and sometimes acted as his amanuensis. In estimating Verplanck's literary character, these compositions, some of which are

marked by great beauty of style and others by a rich humor, should not be over-looked. The first volume of the "Talisman" was put in type by a young Englishman named Cox, who, while working at his desk as a printer, composed a clever review of the work, which appeared in the "New York Mirror," and of which Verplanck often spoke with praise.

In 1833, Verplanck collected his public speeches into a volume. Among these is one delivered in August of that year, at Columbia College, in which he holds up to imitation the illustrious examples of great men educated at that institution. In one of those passages of stately eloquence which he knew so well to frame, he speaks of the worth of his old adversary, De Witt Clinton, the first graduate of the College after the peace of 1783, and pays due "honor to that lofty ambition which taught him to look to designs of grand utility, and to their successful execution as his arts of gaining or redeeming the confidence of a generous and public spirited people." In the same discourse he pronounced the eulogy of Dr. Mason, who had died a few days before. In the same year, Verplanck, at Geneva College, delivered an address on the "Right Moral Influence and Use of Liberal Studies," and the next year, at Amherst College, another on the converse of that subject, namely, the "Influence of Moral Causes upon Opinion, Science and Literature." In 1836, he gave a discourse on "the Advantages and Dangers of the American Scholar." Of these addresses let me say, that I know of no compositions of their class which I read with more pleasure or more instruction. Enlarged views, elevated sentiments, a hopeful and courageous spirit, a wide knowledge of men and men's recorded experience, and a manly dignity of style, mark them all as the productions of no common mind.

After separating from the Democratic party, Mr. Verplanck was elected by the Whigs, in 1837, to the Senate of the State of New York, while that body was yet a Court for the Correction of Errors,--a tribunal of the last resort,--and in that capacity decided questions of law of the highest magnitude and importance. Nothing in his life was more remarkable than the new character in which he now appeared. The practiced statesman, the elegant scholar and the writer of graceful sketches, the satirist, the critic, the theologian, started up a profound jurist. During the four years in which he sat in this Court, he heard the arguments in nearly every case which came before it, and

delivered seventy-one opinions--not simply his written conclusions, but elaborate judgments founded on the closest investigation of the questions submitted, the most careful and exhaustive examination of authorities, and a practical, comprehensive and familiar acquaintance with legal rules and principles, even those of the most technical nature, which astonished those who knew that he had never appeared for a client in Court, or sat before in a judicial tribunal. I use in this the language of an able lawyer, Judge Daly, who has made this part of Verplanck's labors a subject of special study.

As examples of his judicial ability, I may instance his examination of the whole structure of our State and Federal Government in the case of *Delafield* against the State of Illinois, where the question came up whether an individual could sue a State; his survey of the whole law of marine insurance and the principles on which it is founded, in the case of the *American Insurance Company* against *Bryan*; his admirable statement of the reasons on which rests the law of prescription, or right established by usage, in the case of *Post* against *Pearsall*; his exposition of the extent of the right which in this country the owners of land on the borders of rivers and navigable streams have in the bed of the river, in *Kempshall's* case--a masterly opinion, in which the whole Court concurred. I might also mention the great case of *Alice Lispenard*, in which he considered the degree of mental capacity requisite to make a will, a case involving a vast amount of property in this city, decided by his opinion. There is also the case of *Smith* against *Acker*, relating to the taint of fraud in mortgages of personal property, in which he carried the Court with him against the Chancellor and overturned all the previous decisions. Not less important is his elaborate, learned and exhaustive opinion in the case of *Thompson* against the People, decided by a single vote and by his opinion,--in which he examined the true nature of franchises conferred on individuals in this country by the sovereign power, the right to construct bridges over navigable streams, and the proper operation of the writ of *quo warranto*. These opinions of Verplanck form an important part of the legal literature of our State. If he had made the law his special pursuit, and been placed on the bench of one of our higher tribunals, there is no degree of judicial eminence to which he might not have aspired. The Standing Committee of the Diocese of New York, of which he was a member, in their resolutions expressive of sorrow for his death, spoke of him as one whose judicial wisdom and familiarity

with the principles and practice of the law, made his counsels of the highest value.

In 1844, after, I doubt not, some years of previous study, appeared the first number of Verplanck's edition of Shakespeare, issued by Harper & Brothers. The numbers appeared from time to time till 1847, when the work was completed. He made some corrections of the text but never rashly; he selected the notes of other commentators with care; he added some excellent ones of his own, and wrote admirable critical and historical prefaces to the different plays. This edition has always seemed to me the very one for which the general reader has occasion.

Almost ever since the American Revolution a Board of Regents of the University of the State of New York has existed, on which is laid the duty of visiting and superintending in a general way our institutions of education above the degree of Common Schools. It consists of twenty-three members, including the Governor and Lieutenant-Governor, the Secretary of State and the Superintendent of Public Instruction; the other nineteen members are appointed by the Legislature. The Board assists at the incorporation of all colleges and academies, looks into their condition, interposes in certain specified cases, receives reports from them and makes annual reports to the Legislature, and confers by diploma such degrees as are granted by any college or university in Europe. Mr. Verplanck was appointed a member of this Board in 1826, in place of Matthew Clarkson, who had been a Regent ever since 1787. In 1855 he was appointed Vice-Chancellor of the University, and to the time of his death punctually attended the meetings of the Board, shared in its discussions and bore his part in its various duties. In 1844 the State Library was placed under the superintendence of the Regents. Mr. Verplanck was immediately put on the Library Committee, where his knowledge of books and editions of books made his services invaluable. There were then about ten thousand volumes in the collection, and many of these consisted of broken sets. Under the care of the Regents--Mr. Verplanck principally, who gave it his particular attention--it has grown into a well selected, well arranged library of more than eighty-two thousand volumes. About the same time the State Cabinets of Natural History were put under the care of the Board, and these have equally prospered, every year adding to their extent, until now the Regents publish annually,

catalogues of the additions made to them from various sources, and, occasionally, papers communicated by experts in natural history.

Every year in the month of August a University Convocation is held at Albany, to which are invited all the leading teachers and professors of our colleges and academies, and carefully prepared papers relating to education are read. At the first of these conventions, in 1863, Mr. D.J. Pratt, now the Assistant Secretary of the Board, had read a paper on "Language as the Chief Educator and the noblest Liberal Art," in which he dwelt upon the importance of studying the ancient classic authors in their original tongues. Mr. Verplanck remarked that in what he had to say he would content himself with relating an anecdote respecting the first Napoleon, which he had from a private source, and which had never been in print. The Emperor wishing to keep himself advised of what was passing in the University of France, yet without attracting public attention, was wont on certain occasions to send to the University a trustworthy and intelligent person from his household, who was to bring back a report. This man at one time reported that the question of paying more attention to the mathematical sciences had been agitated. On this Napoleon exclaimed with emphasis: "Go to the Polytechnic for mathematics, but classics, classics, classics for the University." At another time Verplanck, still occupied with his favorite studies, gave the convention an address on the pronunciation of the Latin language, in which he came to the conclusion that of all the branches of the Latin race, the Portuguese in their pronunciation of Latin make the nearest approach to that of the ancient Romans. He was desired by the members of the Board to write out the address for publication, but this was never done. Verplanck, as I have already remarked, was an unwilling scribe, and did not like to handle the pen.

The Annual Reports of the Regents, which are voluminous documents, give much the same view of the arrangements for public education in the State as is obtained of a country by looking down upon it from an observatory. Every college, every academy, every school, not merely a private enterprise, and above the degree of common schools, makes its yearly report to the Regents, and these are embodied in the general report which they make to the Legislature, so that the whole great system, with all its appendages, its libraries, its revenues, its expenditures, the number of its teachers and its

pupils, and the opportunities of instruction which it gives, lies before the eye of the reader. It now comprehends twenty Colleges of Literature and Science, three Law Departments, two Medical Colleges, two hundred or more Academies, or Schools of that class, besides the Normal School at Albany.

In his discourse delivered before this Society in 1818, Mr. Verplanck had apostrophized his native country as the Land of Refuge. He could not then have foreseen how well in after times it would deserve this name, nor what labors and responsibilities the care of that mighty throng who resort to our shores for work and bread would cast upon him. Shortly before the year 1847 the number of emigrants from Europe arriving in our country had rapidly and surprisingly increased. The famine in Ireland had caused the people of that island to migrate to ours in swarms like those which the populous North poured from her frozen loins to overwhelm the Roman Empire. In the ten years from 1845 to 1854 inclusive, more than a million and a half of Irish emigrants left the United Kingdom. The emigration from Germany had also prodigiously increased and promised to become still larger. All these were exposed, and the Germans in a particular manner, on account of their ignorance of our language, to the extortions of a knavish class, called runners, and of the keepers of boarding-houses, who often defrauded them of all that they possessed, and left them to charity. Most of those who, after these extortions, had the means, made their way into the interior and settled upon farms, but a large number remained to become inmates of the almshouse, or to starve and sicken in crowded and unwholesome rooms. Mr. Kapp, for some time a Commissioner of Emigration, relates, in his interesting work on Emigration, an example of the manner in which these poor creatures were cheated. An emigrant came to a boarding-house keeper to pay his bill: "It is eighteen dollars," said the landlord. "Why," said the emigrant, "did you not agree to board me for sixpence a meal and threepence for a bed?" "Yes," was the answer, "and that is just seventy-five cents a day; you have been here eight days, and that makes just eighteen dollars."

These things had become a grievous scandal, and it was clear that something must be done to protect the emigrant from pillage, and the country from the burden of his support. The Act of May, 1847, was

therefore passed by the New York Legislature. It named six gentlemen of the very highest character, Gulian C. Verplanck, James Boorman, Jacob Harvey, Robert B. Minturn, William F. Havemeyer, and David C. Colden, who were to form a Board of Commissioners of Emigration, charged with the oversight and care of this vast influx of strangers from the Old World. To these were added the Mayors of New York and Brooklyn, and the Presidents of the German Society and the Irish Emigrant Society. Every master of a vessel was, within twenty-four hours of his arrival, to give this Board a list of his passengers, with a report of their origin, age, occupation, condition, health and other particulars, and either give bonds to save the community from the cost of maintaining them in case they became paupers, or pay for each of them the sum of two dollars and a half. The payment of money has been preferred, and this has put into the hands of the Commissioners a liberal revenue, faithfully applied to the advantage of the emigrants.

Mr. Havemeyer was chosen President of the Board, but resigned the office after a few months, and was succeeded in it by Mr. Verplanck, who held it till the day of his death. Under the management of the Commissioners, the Bureau of Emigration, becoming with almost every year more perfectly adapted to its purpose, has grown to vast dimensions, till it is now like one of the departments of government in a great empire. Whoever passes by Ward's Island, where the tides of the East River and the Sound meet and rush swiftly to and fro through their narrow channels, will have some idea of what the Board has done as he sees the domes and spires of that great cluster of buildings, forming a vast caravanserai in which the poorer class of emigrants are temporarily lodged, before they can be sent into the interior or find employment here. Here are barracks for the men, a spacious building for the women and children, a nursery for children of a tender age, Catholic and Protestant chapels, a dispensary, workshops, a lunatic asylum, fever wards, surgical wards, storehouses, residences of the physicians and other persons employed in the care of the place, and out-houses and offices of various kinds. Here, too, rise the stately turrets of the spacious new hospital styled the Verplanck Emigrant Hospital, in honor of the great philanthropist, for such his constant and noiseless labors in this department of charity entitle him to be called.

The Commissioners found that they could not protect the emigrants from imposition without a special landing place from which they could wholly exclude the rascal crew who cheated them. It took eight years to obtain this from the New York Legislature, but at last, in 1855, it was granted, and the old fort at the foot of Manhattan Island, called Castle Garden, was leased for this purpose. This is now the Emigrants' Landing, the gate of the New World for those who, pressing westward, throng into it from the Old. Night and day it is open, and through this passage the vast tide of stranger population, which is to mingle with and swell our own, rushes like the current of the Bosphorus from the Black Sea towards the Propontis and the Hellespont, to help fill the great basin of the Mediterranean. What will be the condition of mankind when the populations of the two hemispheres, the East and the West, shall have found, as they must, a common level, and when the human race, now struggling for room in its ancient abodes, shall look in vain for some unoccupied region where a virgin soil is waiting to reward the laborer with bread?

As he enters Castle Garden the emigrant undergoes inspection by a competent physician, and if he be aged, sick, or in any way disabled, the master of the vessel must give a special bond for his maintenance. He is introduced into the building--here he finds one department in which he is duly registered, another from which he receives such information as a stranger requires, another from which his luggage is dispatched to its destination, another at which attend clerks, skilled in the languages of continental Europe, to write his letters, another at which railway tickets are procured without danger of extortion, another at which fair arrangements are made with boarding houses, another from which, if sick or destitute, he is sent to Ward's Island, and half a dozen others, important as helps to one who has no knowledge of the usages of the country to which he has come. I refer to these arrangements, among a multitude of others, in order to show what administrative talent and what constant attention were necessary to ensure the regular and punctual working of so vast a system. To this duty Mr. Verplanck, aided by able and disinterested associates like himself, gave the labors of a third of a century, uncompensated save by the consciousness of doing good. The composition of this Board has just been changed by the Legislature of the State, in such a manner as unfortunately to introduce

party influences, from which, during all the time of Mr. Verplanck's connection with it, it had been kept wholly free.

Yet Mr. Verplanck had his party attachments, though he never suffered them to lead him out of the way he had marked for himself. He would accompany a party, but never follow it. His party record is singular enough. He was educated a federalist, but early in life found himself acting against the federal party. He was with the whigs in supporting General Harrison for the Presidency, and claimed the credit of suggesting his nomination. Mr. Clay he would never support on account of his protectionist principles, and when that gentleman was nominated by the whigs he left them and voted for Mr. Polk, though he was disgusted by the trick which obtained the vote of Pennsylvania for Mr. Polk under the pretence of his being a protectionist. Subsequently he supported General Taylor, the whig candidate for the Presidency, but the nomination of Mr. Buchanan, in 1857, saw him once more with the democrats, from whom he did not again separate. When the proposal to make government paper a legal tender for debts was before Congress, he opposed it with great zeal, writing against it in the democratic journals. I agreed with him that the measure was an act of folly, for which I could find no excuse, but he almost regarded it as a public crime. He vehemently disapproved, also, of the arbitrary arrests made by our government during the war, some of which, without question, were exceedingly ill advised. His zeal on these points, I think, made him blind to the great issues involved in our late civil war, and led his usually clear and liberal judgment astray.

I have not yet mentioned various capacities in which he served the public without any motive but to minister to the public welfare. He was from a very early period a Trustee of the Society Library, in which he took great interest, delighting to make additions to its stock of books, and passing much time in its alcoves and its reading rooms. He was one of the wardens of Trinity Church, that mistress of mighty revenues. He was for some years one of the governors of the New York Hospital, and I remember when he made periodical visits to the Insane Asylum at Bloomingdale, as one invested with authority there. During the existence of the Public School Society he was one of its Trustees from 1834 to 1841, and rendered essential service to the cause of public education.

His useful life closed on the 18th of March last. For some months before this date his strength had declined, and when I met him from time to time it seemed to me that his features had become sharper and his frame more attenuated, yet I perceived no diminution of mental vigor. He took the same interest in the events and questions of the day as he had done years before, his apprehension seemed as quick, and all the powers of his mind as active.

On the Wednesday before his death he attended one of those weekly meetings which he took care never to miss, that of the Commissioners of Emigration, But in one of his walks on a rainy day he had taken a cold which resulted in a congestion of the lungs. On Thursday evening he lay upon a sofa, conversing from time to time, after his usual manner, until near midnight. On Friday morning, when his body servant entered the room and looked at him he perceived a change and called his grandson, who, with a grand-daughter, had constantly attended him during the past winter. The grandson immediately went for his physician, Dr. Carnochan, who, however, was not to be found, and whose assistant, a young man, came in his stead. Mr. Verplanck, in a way which was characteristic of him, studied the young man's face for a moment and then asked: "From what college were you graduated?" The reply was--"Paris;" on which Mr. Verplanck turned away as if it did not much please him, and in a moment afterward expired. He was spared the previous suffering which so many are called to endure. His son had visited him from time to time, and was with him the day before his death, yet this event was unexpected to all the family. His father, in his old age, had as suddenly passed away, having fallen dead by the wayside.

The private life of our friend was as beautiful as his public life was useful and beneficent. He took great interest in the education of his grandchildren; inquired into their studies, talked with them of the books they read, and sought with great success to make them fond of all good learning, directing their attention to all that was noble in literature and in art. His mind was a storehouse of facts in history and biography on which he drew for their entertainment, and upon occasion diversified the graver narratives with fairy tales and stories of wonder from the Arabian Nights. He made learning pleasant to them by taking them on Saturdays to places of amusement from which he contrived that they should return not only amused but instructed.

In short, it seemed as if, in his solicitude for the education of his descendants, he sought to repay the cares bestowed upon his early youth by his grandfather of Stratford, of whom he said in his discourse delivered at Amherst College, that his best education was bestowed by the more than paternal care of one of the wisest and most excellent sons of New England. Long after he was an old man he would make pleasant summer journeys with these young people and look to their comfort and safety with the tenderest solicitude.

Christmas was merry Christmas at the old family mansion in Fishkill. He caused the day to be kept with many of the ancient usages, to the great satisfaction of the younger members of the household. He was fond of observing particular days and seasons, and marking them by some pleasant custom of historical significance--for with all the ancient customs and rites and pastimes pertaining to them he was as familiar as if they were matters of to-day. It distressed him even to tears when, last Christmas, he found that his health did not allow him to make the journey to Fishkill as usual. He made much of the birthdays of his grandchildren, and taught them to observe that of Shakespeare by adorning the dwelling with the flowers mentioned in those ærial verses of the Winters Tale--

"daffodils,
That come before the swallow dares and take
The winds of March with beauty; violets dim,
But sweeter than the lids of Juno's eyes
Or Cytherea's breath; pale primroses
That die unmarried," &c., &c.

For many years past he had divided his time pretty equally between Fishkill and New York, visiting the homestead in the latter part of the week and returning in time to attend the weekly meetings of the Commissioners of Emigration. While in the country he was a great deal in the open air, superintending the patrimonial estate, which he managed with ability as a man of business, giving a careful attention, even to the minutest details. But he was most agreeably employed in his large and well stored library. Here were different editions of the Greek and Latin classics, some of them rare and enriched with sumptuous illustrations--thirty different ones of Horace

and nearly as many of Virgil. With the Greek tragedians he was as familiar as with our own Shakespeare. In this library he wrote for the Crayon his entertaining paper on Garrick and his portrait, and his charming little volume entitled "Twelfth Night at the Century Club." Here also he wrote several papers respecting the true interpretation of certain passages in Virgil, which were published in the 'Evening Post.' It is to be regretted that he did not collect and publish his literary papers, which would form a very agreeable miscellany. He seemed, however, almost indifferent to literary fame, and when he had once sent forth into the world an essay or a treatise, left it to its fate as an affair which was now off his hands. On Sunday morning he was alway at the old church in the village of Fishkill, one of the most attentive and devout worshippers there. It is an ancient building of homely architecture, looking now just as it did a century ago, with a big old pulpit and sounding board in the midst of the church, which the people would have been glad to remove, but refrained, because Mr. Verplanck, whom they so venerated, preferred that it should remain.

The patrimonial mansion at Fishkill had historical associations which must have added to the interest with which our friend regarded it. Mr. Tuckerman relates, in the "North American Review," though without naming the place or the persons, a story in which they were brought out in a singular manner. He was there fifteen or twenty years since, a guest at Verplanck's table. He describes the June sunshine which played through the shifting branches of tall elms on the smooth oaken floor of the old dining room, the plate of antique pattern on the sideboard and the portraits of revolutionary heroes on the walls. As they sat down to dinner, an old lady, bowed with years and with a restless, yet serene look, entered and took a seat beside Mr. Verplanck. A servant adjusted a napkin under her chin and the dinner proceeded. A steamer was passing up the river and a band on board struck up a martial air. The old lady trembled, clasped her hands, and, raising her eyes, exclaimed, "Ah! all intercession is vain. Andre must die." Mr. Verplanck made a sign to the company to listen, and calling the lady Aunt, addressed her with some kind inquiry, on which she went on to speak of the events and personages of the Revolution as matters of the present day. She repeated rapidly the names of the English officers whom she had known, "described her lofty head-dress of ostrich feathers, which caught fire at the theatre, and repeated the verses of her admirer who was so fortunate as to

extinguish it." She dwelt upon the majestic bearing of Washington, the elegance of the French, the dogmatism of the British officers; the by-words, the names of gallants, belles and heroes; the incidents, the questions, the etiquette of those times seemed to live again in her tremulous accents, which gradually became feeble, until she fell asleep! "It was," continued the narrator, "like a voice from the grave." This old lady was a Miss Walton, a sister of Judge Verplanck's second wife.

When he found time for the studies by which his mind was kept so full of useful and curious knowledge, I cannot well conceive. He loved to protract an interesting conversation into the small hours of the night, and he was by no means, as it is said most long-lived men are, an early riser. An anecdote related by a gentleman of the New York bar will serve to illustrate, in some degree, his desultory habits during that part of his time which was passed in New York. This gentleman gave a dinner at Delmonico's, then in William Street, to a professional brother from another city, who was in town only for the day. Mr. Verplanck, Judge William Kent, and one or two other clever lawyers, were of the party. I will allow him to tell the story in his own words.

"We of course," he says, "had a delightful evening, for our stranger guest was a diamond; Kent was never more charming and witty; Mr.---- never more stately and brilliant, and Verplanck was in his most genial mood, full of his peculiarly interesting, graceful and instructive conversations. The spirit of the hour was unrestrained and cordial. We had a good time, and it was not early when the dispersion began. Verplanck and Kent remained with us after the others withdrew, and as midnight approached Kent also departed. After a while Verplanck and I went forth and sauntered along in the darkness through the deserted streets, among the tenantless and gloomy houses, till we reached the point where his path would diverge for Broadway and up-town, and mine for Fulton Ferry and Brooklyn Heights. Instead of leaving me the good philosopher volunteered to keep on with me to the river, and when we reached the river, proposed to remain with me until the boat arrived, and then proposed to cross the river with me. We were, I think, the only passengers, and his conversation continued to flow as fresh and interesting as at the dinner table until we reached the Brooklyn shore. He declined to pass the rest of the night at my house, and while I

waited with him till the boat should leave the wharf to take him back, the night editor of the *Courier and Enquirer*, a clever and accomplished gentleman, came on board on the way to his nocturnal labors. I introduced them to each other; they were at once in good accord; I saw them off and went homeward. A day or two after I learned that when they reached the New York shore, Verplanck volunteered to stroll down to the *Courier* office with the editor, accepted his invitation to walk in, ascending with him to his room in the attic, and, to the editor's great delight and edification, remained with him, conversing, reading and ruminating until broad daylight. There was a charm in Mr. Verplanck's conversation that was distinctive and peculiar. It was 'green pastures and still waters.'"

Our friend had, it is true, a memory which faithfully retained the acquisitions made in early life, but, in some way or other, was continually enlarging them. I think I have never known one whose thoughts were so much with the past, whose memory was so familiar with the words and actions of those who inhabited the earth before us, and who so loved and revered the worthy examples they have given us, yet who so much interested himself in the present and was so hopeful of the future. There was no tendency of this shifting and changeful age which he did not observe, no new discovery made, no new theory started, no untrodden path of speculation opened to human thought, which did not immediately engage his attention, and of which he had not something instructive to say. He was as familiar with the literature of the day as are the crowd of common readers who know no other, yet he suffered not the brilliant novelties of the hour to wean his admiration from the authors whose reputation has stood the test of time. He was generous, however, to rising merit, and took pleasure in commending it to the attention of others.

His learning was not secular merely; his library was well stocked with works on theology; he was familiar with the questions discussed in them; the New Testament, in the original, was a part of his daily reading; he had examined the dark or doubtful passages of Scripture, and they who were much in his society needed no more satisfactory commentator. Not long since he sent to the Society Library for a theological work rather out of date. "It is the first time that work was ever called for," said the librarian, smiling as he took it from the shelf, and aired the leaves a little.

His kindness to his fellow men was shown more in deeds than in words--for of words of compliment he was particularly sparing; and he loved to do good by stealth. A letter from his pastor, the Rev. Dr. Shelton, says: "He was very kind and affectionate when he thought he discovered merit in any body however humble, and though he dropped never so much as a hint to the individual himself, he was pretty sure to speak a good word for him in quarters where it would have an influence. A great many never knew whom they had to thank for this. Here he recommended some one for a place, there he picked up a book or a set of books for some distant library. In this way he went about doing good, and, not given to impulse, was systematically benevolent." A letter from another hand speaks of the clergymen whom he had put in the way of getting a parish, the youths for whom he had procured employment--favors quietly conferred, when perhaps the person benefited had forgotten the application or given up the pursuit. He preserved carefully all that related to those persons in whom he took a kindly interest. "Never," says Dr. Shelton, "did a juvenile letter come to him that he did not carefully put away. Whole packages of them are found among his papers; if they had been State documents they could not have been more important in his eyes."

I have spoken of the hopefulness of his temper. This was doubtless in a great degree constitutional, for he is said to have been an utter stranger to physical fear, preserving his calmness on occasions when others would be in a fever of alarm. He loved our free institutions, he had a serene and steady confidence in their duration and his published writings are for the most part eloquent pleas for freedom, political equality and toleration. Even the shameless corruption which has seized on the local government of this city, did not dismay or discourage him. He maintained, in a manner which it was not easy to controvert, that the great cities of Europe are quite as grossly misgoverned, and that every overgrown community like ours must find it a difficult task to rid itself of the official leeches that seek to fatten on its blood.

In looking back upon the public services of our friend it occurs to me that his life is the more to be held up as an example, inasmuch as, though possessed of an ample fortune, he occupied himself as diligently in gratuitous labors for the general good as other men do in the labors of their

profession. In the dispensation of his income he leaned, perhaps, to the side of frugality, but his daily thought and employment were to make his fellow men happier and better; yet I never knew a man who made less parade of his philanthropy. He rarely, and never, save when the occasion required it, spoke of what he had done for others. I never heard, I think no man ever heard, anything like a boast proceed from his lips, nor did he practice any, even the most innocent expedients, to attract attention to his public services. Not that I suppose him insensible to the good will and good word of his fellow men. He valued them, doubtless, as every wise man must, but sought them not, except as they might be earned by the unostentatious performance of his duty. If they came they were welcome, if not, he was content with the testimony of his own conscience and the approval of Him who seeth in secret.

It may be said that in almost every instance the place of those who pass from the stage of life is readily supplied from among the multitude of those who are entering upon it; the well-graced actor who makes his exit is succeeded by another, who soon shows that he is as fully competent to perform the part as his predecessor. But when I look for one to supply the place of our friend who has departed, I confess I look in vain. I ask, but vainly, where we shall find one with such capacities for earning a great name, such large endowments of mind and acquisitions of study united with such modesty, disinterestedness and sincerity, and such steady and various labors for the good of our race conjoined with so little desire for the rewards which the world has to bestow on those who render it the highest services. But though we sorrow for his departure and see not how his honored place is to be filled, let us congratulate ourselves, and the community in which we live, that he was spared to us so many years. His day was like one of the finest days in the season of the summer solstice, bright, unclouded, and long.

Farewell--thou who hast already entered upon thy reward! happy in this, that thou wert not called from thy beneficent labors before the night. Thou hadst already garnered an ample harvest; the sickle was yet in thy hand; the newly reaped sheaves lay on the field at thy side, when, as the beams of the setting sun trembled on the horizon, the voice of the Master summoned thee to thine appointed rest. May all those who are as nobly endowed as thou,

and who as willingly devote themselves to the service of God and mankind
be spared to the world as long as thou hast been.

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*** END OF THE PROJECT GUTENBERG EBOOK A DISCOURSE ON
THE LIFE, CHARACTER AND WRITINGS OF GULIAN CROMMELIN
VERPLANCK ***

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